



Arvesta Financial Services Private Limited

Integrated Ombudsman Scheme

Introduction

The Reserve Bank of India ("RBI") in the interest of the customers of the entities regulated by it has integrated the existing Ombudsman schemes of RBI which provides cost free, simpler and more customers responsive alternate dispute redress mechanism.

Salient Features of the Reserve Bank – Integrated Ombudsman Scheme, 2021:

I. Grounds for filing a complaint by a customer under the Integrated Ombudsman Scheme

Any customer aggrieved by an act or omission of the Company resulting in deficiency in service may file a complaint under the Scheme personally or through an authorised representative.

"Authorised Representative" means a person, other than an advocate (unless the advocate is the aggrieved person) duly appointed and authorized in writing to represent the complainant in the proceedings before the Ombudsman

II. Grounds for non-maintainability of a complaint

1. No complaint for deficiency in service shall lie under the policy in matters involving:
 - a. commercial judgment/decision of the Company;
 - b. a dispute between a vendor and Company relating to an outsourcing contract;
 - c. a grievance not addressed to the Ombudsman directly;
 - d. general grievances against Management or Executives of the Company;
 - e. a dispute in which action is initiated by the Company in compliance with the orders of a statutory or law-enforcing authority;
 - f. a service not within the regulatory purview of the Reserve Bank;
 - g. a dispute between Regulated Entities;
 - h. a dispute involving the employee-employer relationship of the Company;

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- i. a dispute for which a remedy has been provided in Section 18 of the Credit Information Companies (Regulation) Act, 2005; and
 - j. a dispute pertaining to customers of the Company not included under the policy.
2. A complaint under the Scheme shall not lie unless:
- a. the complainant had, before making a complaint under the Scheme, made a written complaint to the Company and –
 - i. the complaint was rejected wholly or partly by the Company, and the complainant is not satisfied with the reply; or the complainant had not received any reply within 30 days after the Company received the complaint; and
 - ii. the complaint is made to the Ombudsman within one year after the complainant has received the reply from the Company to the complaint or, where no reply is received, within one year and 30 days from the date of the complaint.
 - b. the complaint is not in respect of the same cause of action which is already-
 - i. pending before an Ombudsman or settled or dealt with on merits, by an Ombudsman, whether or not received from the same complainant or along with one or more complainants, or one or more of the parties concerned;
 - ii. pending before any Court, Tribunal or Arbitrator or any other Forum or Authority; or, settled or dealt with on merits, by any Court, Tribunal or Arbitrator or any other Forum or Authority, whether or not received from the same complainant or along with one or more of the complainants/parties concerned;
 - c. the complaint is not abusive or frivolous or vexatious in nature;
 - d. the complaint to the Company was made before the expiry of the period of limitation prescribed under the Limitation Act, 1963, for such claims;
 - e. the complainant provides complete information as specified in clause 11 of the Scheme;
 - f. the complaint is lodged by the complainant personally or through an authorised representative other than an advocate unless the advocate is the aggrieved person.

Explanation 1: For the purposes of sub-clause (2)(a), 'written complaint' shall include complaints made through other modes where proof of having made a complaint can be produced by the complainant.

Explanation 2: For the purposes of sub-clause (2)(b)(ii), a complaint in respect of the same cause of action does not include criminal proceedings pending or decided before a Court or Tribunal or any police investigation initiated in a criminal offence.



III. Procedure for Filing a Complaint

1. If a reply is not received from the Company within 30 (thirty) days, or, if the customer remains dissatisfied with the reply, then the customer may file a complaint with Ombudsman online through the Complaint Management System portal <https://cms.rbi.org.in> (not later than 1 (one) year after the reply from the Company), provided that customer has not approached any forum/court/authority.
2. Complaints may also be filed through electronic or physical mode to the Centralised Receipt and Processing Centre as notified by RBI. The complaint, if submitted in physical form, shall be duly signed by the complainant or by the authorised representative. The complaint shall be submitted in electronic or physical mode in the format prescribed by RBI.

IV. How does the Ombudsman take decisions?

1. The proceedings before Ombudsman shall be summary in nature and shall not be bound by any rules of evidence.
2. The Ombudsman will promote the settlement of the complaint by mutual agreement between the complainant and the Company through conciliation or mediation.
3. If the above is not reached, then the Ombudsman can pass an Award/Order either allowing or rejecting the complaint along with reasons for passing such an Award/Order.
4. If a customer is not satisfied with the decision of the Ombudsman, he/she can file an appeal before the Executive Director- in charge of the Consumer Education and Protection Department of the Reserve Bank of India (RBI) against the Award/Order within 30 (thirty) days of the date of receipt of communication of Award/Order or Rejection of complaint.
5. The Company may go in for an appeal against the Award within 30 (thirty) days from the date of receipt of the letter of Award.
6. An '**Award**' includes a direction for specific performance by the NBFC concerned. It may or may not include a direction to pay compensation for the loss, if any, suffered by the complainant. The ombudsman will not have the power to pass an Award directing payment of an amount that is more than the actual loss suffered by the complainant or INR 20,00,000 (Indian Rupees Twenty Lakhs), whichever is lower. In addition, the Ombudsman may also award compensation not exceeding INR 1,00,000 (Indian Rupees One Lakh) to the



complainant, taking into account the loss of time, expenses incurred, harassment, and mental anguish suffered by the complainant.

Note:

The Ombudsman may reject a complaint at any stage.

The Ombudsman Scheme is an Alternate Dispute Resolution Mechanism.

The Customer is at liberty to approach any other court/forum/authority for the redressal of their disputes at any stage

V. How will the Award be implemented?

1. The Company shall complete the settlement arrived with the complainant or the Award passed by the Ombudsman when it becomes final and send a report in this regard to the RBI Ombudsman within 15 (fifteen) days of the award becoming final.

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Annex - I

The details of the Nodal Officers of the Company who can be approached by the customer as per the Integrated Ombudsman Scheme, 2021, and the details of the RBI Ombudsman are given below:

Name and Contact details of the Grievance Redressal Officer / Principal Nodal Officer of the Company to be approached by the customer:

Sr. No.	Name	Contact Details	Zone	Office Address
1.	Shekhar Ghotgalkar	+91-7757009794		B-903, Marathon Futurex, NM Joshi Marg, Lower Parel Mumbai Maharashtra 400013 India

If the grievance is not redressed by Grievance Redressal Officer / Principal Nodal Officer of the Company, within a period of 30 (thirty) days, then the Complaints can be filed, in the prescribed format (available on the RBI website - <https://cms.rbi.org.in>), or sent in physical mode to

The 'Centralised Receipt and Processing Centre (CRPC)
Reserve Bank of India,
4th Floor, Sector 17,
Central Vista
Chandigarh - 160017
RBI Contact Centre – 14448
Email: crpc@rbi.org.in

A copy of the [Scheme](#) is available on the RBI website and on the CMS portal (<https://cms.rbi.org.in>).

Please refer to www.rbi.org.in for further details of the Scheme.